

26STCV00750 26STCV00750

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV00750 Hearing Date: June 24, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 24, 2026

Case Name: Rose v. Artiano Shinoff, APC, et al.

Case No.: 26STCV00750

Matter: Motion to Lift Stay of Discovery

Moving Party: Plaintiff Joseph Rose

Responding Party: Defendants Artiano Shinoff, APC, Gil Abed, Paul Carelli IV, and Maurice

Bumbu

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA

CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On March 25, 2026, Plaintiff Joseph Rose filed the operative First Amended Complaint ("FAC"). Plaintiff alleges that evidence subject to a protective order from his underlying action (22STCV37608) against LAUSD was improperly disclosed and weaponized in the Jane Doe K.D. v. LAUSD case (22TRCV01592), and conversely, restricted evidence from the K.D. case was imported back into 22STCV37608. Plaintiff asserts that this illicit exchange of discovery was orchestrated to manipulate litigation strategies and gain an unfair collateral advantage in both proceedings. Plaintiff's causes of action target Defendants' representations to the court and their litigation strategy in attempting to settle these cases.

On April 27, 2026, Defendants Artiano Shinoff, APC, Gil Abed, Paul Carelli IV, and Maurice Bumbu filed an anti-SLAPP Motion as to the FAC.

Plaintiff now seeks to lift the stay of discovery and conduct discovery "into when Defendants learned of the correct Darryl Charles Lott identity, when Defendants learned that Plaintiff's case involved a mistaken-identity issue, whether confidential materials from Plaintiff's case were used in the K.D. case, and whether communications exist between Defendants and Slater Slater Schulman LLP concerning these issues."

Code Civ. Proc. § 425.16(g) provides, "All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision."

In order to establish "good cause" within the meaning of Code Civ. Proc. § 425.16(g), the plaintiff must show that "a defendant or a witness possesses evidence needed by the plaintiff to establish its probability of prevailing on a claim." (1-800 Contacts, Inc. v. Steinberg (2003) 107 Cal.App.4th 568, 572). Whether good cause has been shown is within the discretion of the Court. (See Lafayette Morehouse, Inc. v. Chronicle Publ'g Co. (1995) 37 Cal.App.4th 855, 868.)

"[T]he fact evidence necessary to establish the plaintiff's prima facie case is in the hands of the defendant or a third party goes a long way toward showing good cause for discovery. But it is not the only factor. The trial court should consider whether the information the plaintiff seeks to obtain through formal discovery proceedings is readily available from other sources or can be obtained through informal discovery. The court should also consider the plaintiff's need for discovery in the context of the issues raised in the SLAPP motion." (The Garment Workers Ctr. v. Superior Court (2004) 117 Cal.App.4th 1156, 1162.)

Good cause has not been shown for lifting the stay on discovery. This is because it appears that the FAC is largely subject to the litigation privilege and/or presents defective pleading.

Therefore, the Motion is denied.

Moving party to give notice.